

A Few Things You Must Know About Free and Open Source Licences

This informative article covers the scope of various free and open source licences along with the subtle differences between them. It concludes with a few guidelines on choosing a software licence, and a brief description of the top 10 free and open source licences.



According to Wikipedia, “A software licence is a legal instrument governing the use or redistribution of software.” Why is it so essential to license software? To answer this question we first need to understand the different categories into which software can be grouped. Software can be closed source or proprietary, which means that only you, who have bought it, can execute it and you do not have the right to inspect, modify or distribute the code. Then there is open source or free software, which offers you various levels of freedom over the code. The third category of software does not have a licence but is still bound by copyright laws. Finally, there is software in the public domain. This is like the literary works of Kalidasa, Shakespeare or Dante, which are out in the open wilderness of the public domain for use or misuse by the general public.

So, in general, if your piece of code adopts a software licence, it becomes either proprietary software or free/open

source software. If you do not add a licence to your piece of code, there is still no need to panic because it is bound by implicit copyright laws, just like any other creative work. But there is a catch to this. Once the copyright term expires, the software goes into the public domain. Then you no longer have any right over your software, which becomes open for exploitation and can be used by anyone without even mentioning your name or efforts. Besides, the copyright period differs from one country to the next. In India, the copyright term expires after 60 years. But there could be a banana republic somewhere in Latin America or the Caribbean with a copyright term of say one year, after which your software is doomed. If the software falls into the public domain, then any dealings with it become a matter for the legal sharks to feast upon. So it is absolutely essential to add a licence even if the software is irrelevant and primitive.